

ACTS

OF

30^e & 43^e GEO. III.

RELATING TO A

DISTRICT in the PARISH of SAINT LUKE,
CHELSEA,

CALLED

HANS TOWN.



L O N D O N :

Printed by GEORGE EYRE and ANDREW STRAHAN,
Printers to the King's most Excellent Majesty.

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**The Project Gutenberg eBook of Acts of 30° & 43° Geo. III.
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43° GEO. III. RELATING TO A DISTRICT IN THE PARISH OF SAINT
LUKE, CHELSEA, CALLED HANS TOWN ***

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ACTS OF 30° & 43° GEO. III.

RELATING TO A
DISTRICT in the PARISH of SAINT LUKE,
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ANNO TRICESIMO
GEORGII III. Regis.

CAP. LXXVI.

An Act for forming and keeping in Repair the Streets, and other publick Passages and Places, within a certain District in the Parish of Saint Luke Chelsea, in the County of Middlesex, called Hans Town, and for otherwise improving the same.

Preamble.

WHEREAS *Henry Holland* of the Parish of *Saint Luke* in *Chelsea*, in the County of *Middlesex*, Esquire, is intituled to a certain large Piece of Ground in the said Parish, which he holds for a long Term of Years, under the Right Honourable *Charles Sloane*, Lord *Cadogan*, the Right Honourable *Welbore Ellis*, and *Christopher D'Oyley* Esquire; which said Ground lies on the South Side of the Town or Village of *Knightsbridge*, and it fronting or pointing towards the North, partly on the High Road leading through *Knightsbridge* aforesaid, partly on or near to the Yard and Stables belonging to the *Swan Inn* in *Knightsbridge*, and Land of *William Brown* Esquire; and towards the South, on a certain Street called *White Lion Street*, and Messuages and Lands belonging to *James Lawrance*, *Joseph Newsham*, and others; and bounded in Part on the East by a Rivulet or Water Creek, encompassing great Part of the said Ground on the East Side thereof, and in other Part by the Lands belonging to *Charles Lowndes* Esquire, and others; and towards the West on lands belonging to *William Bushnell*, and others, and contains by Estimation Eighty-nine Acres, or thereabouts; and the said *Henry Holland* hath caused a commodious Carnage Way or Street, called *Sloane Street*, to be made from *Knightsbridge* aforesaid, over or across the said Ground, and several other Streets, publick Passages, and Places, have been and may hereafter be set out and made upon the said Piece of Ground:

And whereas it would contribute to the Benefit and Safety of all Persons who now do or may hereafter inhabit the said several Streets and other publick Passages and Places, and to all Persons having Occasion to pass along the same, if Provision was made for forming and paving, or otherwise repairing and keeping in Repair, the same, and also for cleansing, lighting, watching, and watering the said Streets and other publick Passages and Places, and keeping the same free from all Nuisances, Annoyances, and Incroachments; but the several Purposes aforesaid cannot be effected without the Aid and Authority of Parliament: May it therefore please Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That every Person who now is, and from Time to Time hereafter shall become, either in his own Right or in the Right of his Wife, in the actual Possession and Enjoyment of Receipt of the Rents and Profits of Lands, Tenements, or Hereditaments, situate within the Limits of this Act, of the clear yearly Value of Thirty Pounds, and also every Person who now is, and from Time to Time hereafter shall be, a Lessee of a House, Tenement, or Land within the Limits aforesaid, rated or liable to be rated, by virtue or for the Purposes of this Act, at Thirty Pounds *per Annum* at the least, and also every Person who now is, and from Time to time hereafter shall be resident within the Limits of this Act, and Occupier of a House, Tenement, or Land, rated or liable to be rated as aforesaid, and possessed of a Personal Estate of the Amount or Value of Two thousand Pounds, shall be and are hereby appointed Commissioners for putting this Act in Execution.

Qualification of Commissioners.

II. Provided always, That no Person shall be capable of acting as a Commissioner in the Execution of this Act, except in administering the Oath herein-after mentioned (which Oath any One of the said Commissioners is hereby empowered to administer), unless at the Time of his acting he shall be qualified in Manner herein-before mentioned, and until such Person shall have taken and subscribed an Oath to the Effect following; (that is to say),

The Oath.

‘I A. B. do swear, That I truly am in my own Right, or in the Right of my Wife, in the actual Possession and Enjoyment, or Receipt of the Rents and Profits, of Lands, Tenements or Hereditaments, of the clear yearly Value of Thirty Pounds [*or that I am Lessee (or Occupier) of a House, Tenement, or Land, rated or liable to be rated at Thirty Pounds per Annum at the least, by virtue or for the Purposes and*] within the Limits of an Act of Parliament, made in the Thirtieth Year of the Reign of King *George* the Third, intituled, [*Set forth the Title of the Act*]; and [*in the Case of such Occupier as aforesaid*] that I am resident within the Limits aforesaid, and am possessed of a Personal Estate of the Amount or Value of Two thousand Pounds.

‘So help me GOD.’

And if my Person, not being qualified as aforesaid, shall act as a Commissioner in the Execution of this Act, he shall for every such Offence forfeit and pay the Sum of Twenty Pounds to any Person who shall sue for the same in any of His Majesty’s Courts of Record, by Action of Debt or on the Case; and the Person so prosecuted shall prove that he is qualified as aforesaid, or otherwise shall pay the said Penalty, without any other Proof or Evidence being given on the Part of the Plaintiff, than that such Person hath acted as a Commissioner in the Execution of this Act.

Meetings of the Commissioners.

III. And be it further enacted, That the said Commissioners shall meet at the House known by the Sign of the *Cadogan Arms*, in *Sloane Street* aforesaid, on the Twenty-fourth Day of *June* One thousand seven hundred and ninety, between Twelve and Two of the Clock, in order to put this Act in Execution, and shall and may then, and from Time to Time afterwards adjourn themselves to, and meet at the Place aforesaid, or any other convenient Place within the Limits of this Act; and if it shall at any Time happen that there shall not appear at any such Meeting a sufficient Number of the said Commissioners to act, any One of the said Commissioners, who shall then be present, may adjourn the Meeting to another Day; and in case of any Neglect or Omission to adjourn, any Three of the said

Commissioners, or their Clerk, shall and may call a Meeting at the Place where the last Meeting of the Commissioners was appointed to be held, by Notice thereof to be given to the said Commissioners by Advertisement in some Newspapers published in *London* or *Westminster*, at least Three Days before such Meeting; and that at all Meetings to be held in pursuance of this Act, the said Commissioners shall defray their own Expences, and no Act of the said Commissioners shall be valid, unless made or done at some Meeting to be held by virtue of this Act (except the calling of Meetings as aforesaid); and that all the Powers and Authorities by this Act granted to or vested in the said Commissioners shall and may, from Time to Time, be exercised by the major Part of them present at their respective Meetings to be holden as aforesaid, such major Part not being less than Ten for the Purpose of borrowing Money or granting Annuities by virtue of this Act, and not being less than Five in any other Case; and in all Cases where the Number of Votes upon any Question shall be equal (including the Chairman's Vote), the Chairman shall have the casting Vote.

Restriction as to revoking Orders.

IV. And be it further enacted, That no Order made by the said Commissioners at any of their Meetings shall be revoked or altered, unless at some Meeting to be held for that Purpose (of which Meeting Seven Days Notice shall be given as aforesaid, expressing the Occasion of such Meeting), and also unless a greater Number of Commissioners shall attend at such Meeting to revoke or alter the same than were present when such Order was made; any Thing in this Act contained to the contrary hereof notwithstanding.

Proceedings of the Commissioners to be entered.

V. And be it further enacted, That regular Entries shall be made, in a Book to be provided for that Purpose, of all the Acts, Orders, and Proceedings of the said Commissioners, and of the Names of the Commissioners who shall be present at the respective Meetings; and One or more of the said Commissioners who shall be present shall subscribe his or their Name or Names at the End of the Proceedings of the respective Meetings; and all such Entries, being so signed, shall be deemed Originals, and shall be allowed to be read in Evidence in all Causes, Suits, and Actions, touching

any Thing done in pursuance of this Act; and that such Books shall, at all seasonable Times, be open to the Inspection of all Persons rated or assessed for the Purposes of this Act.

Officers to be appointed.

VI. And be it further enacted, That the said Commissioners shall from Time to Time, by Writing under their Hands, appoint a Treasurer, Clerk, and Surveyor, and also a Collector of the Rates or Assessments to be made as herein-after mentioned, and such other Officers and Persons as they shall think necessary, and may remove any such Officers or other Persons as they shall think proper, and appoint others in their Stead, and shall pay such Salaries, and make such Allowances, to all such Officers or Persons, as the said Commissioners shall think reasonable; and the said Commissioners are hereby required to take such Security from every such Treasurer and Collector of the Rates as they shall think proper; and every such Treasurer and Collector shall, under their respective Hands (at such Time or Times and in such Manner as the said Commissioners shall direct), deliver to the said Commissioners, or to such Person as they shall appoint, a true and perfect Account in Writing of all Money which shall have been by him received by virtue and for the Purposes of this Act, and how much thereof hath been paid and disbursed, and for what Purposes, together with the proper Vouchers for such Payments, and shall pay all such Money as shall remain in his Hands to such Person as the said Commissioners shall direct; and every such Treasurer and Collector so accounting shall, upon Oath (if thereunto required by the said Commissioners, which Oath any One of the said Commissioners is hereby empowered to administer), verify such Account; and if any such Treasurer or Collector shall not make and render, or shall neglect or refuse to verify upon Oath, any such Account, or to produce or deliver up the Vouchers relating to the same, or to make Payment as aforesaid, or in case the Clerk to the said Commissioners, or any such Treasurer or Collector, shall not deliver to the said Commissioners, or to such Person as they shall appoint, within Fourteen Days next after being thereunto required by Notice in Writing signed by the said Commissioners, and given to or left at the last or usual Place of Abode of such Treasurer, Clerk, or Collector, all Books, Papers, and Writings in his Custody or Power, relating to the Execution of this Act, or give Satisfaction

to the said Commissioners respecting the same, and Complaint shall be made thereof, on the Behalf of the said Commissioners, to any Justice of the Peace for the County of *Middlesex*, such Justice is hereby authorized and required, by Warrant under his Hand and Seal, to cause such Treasurer, Clerk, or Collector to be brought before him, and upon his appearing, or not being to be found, to hear and determine the Matter of such Complaint in a summary Way; and if, upon the Confession of the Party, or by the Testimony of any credible Witness upon Oath (which Oath such Justice is hereby empowered to administer), it shall appear to such Justice that any of the Monies, which shall have been collected and raised by virtue of this Act, shall be in the Hands of any such Treasurer or Collector, such Justice is hereby authorized and required, upon Nonpayment thereof, by Warrant under his Hand and Seal, to cause such Money to be levied by Distress and Sale of the Goods and Chattels of such Person; and if no such Goods or Chattels can be found sufficient to answer and satisfy the said Money, and the Charges of distraining and selling the same, or if it shall in Manner aforesaid appear to such Justice that any such Treasurer or Collector hath refused or neglected to render and give such Account, or to verify the same as aforesaid, or to produce the Vouchers relating thereto, or that any Books, Papers, or Writings relating to the Execution of this Act shall be in the Custody or Power of any such Treasurer, Clerk, or Collector, and he shall have refused or neglected to deliver or give Satisfaction respecting the same as aforesaid, then such Justice shall commit him to the Common Gaol or House of Correction, there to remain, without Bail or Mainprize, until such Person, being Treasurer or Collector, shall make and give a true and perfect Account, and have paid such Money as aforesaid, or shall have compounded for such Money with the said Commissioners, and have paid such Composition in such Manner as they shall appoint (which Composition the said Commissioners are hereby empowered to make and receive), or until such Person, being Treasurer, Clerk, or Collector, shall deliver up all such Books, Papers, and Writings as aforesaid; but no Person, who shall be committed on account of his not having sufficient Goods or Chattels as aforesaid, shall be detained in Prison for any longer Term than Six Calendar Months.

Property of Pavements, &c. vested in Commissioners.

VII. And be it further enacted, That the Property of and in all the Pavements of the Carriage Ways and Foot Ways, and also all the Ballast or Gravel within the several Streets, and other publick Passages and Places, already or hereafter to be set out or made upon the Ground held by the said *Henry Holland* as aforesaid (and which Ground shall be deemed and considered to be the Limits of this Act, and shall be called *Hans Town*), and of and in all Lamps, Lamp Irons, Posts, Watchboxes, Pumps, and Wells, which now are and which shall be sunk, erected, or affixed, and all Materials, Implements, and other Things, which shall be purchased or gotten by virtue or for any of the Purposes of this Act, are hereby vested in the said Commissioners, and they are hereby empowered to cause an Action to be brought, in the Name of their Clerk, or to cause to be preferred any Indictment against any Person who shall steal, take, or carry away, injure, or destroy, any Part or Parts thereof.

Commissioners to cause the Streets to be repaired, &c.

VIII. And be it further enacted, That it shall be lawful for the said Commissioners, and they are hereby authorized and empowered, from Time to Time, to cause the several Streets, and other publick Passages and Places, already or hereafter to be set out or made, within the Limits of this Act, or such of them as they shall judge expedient, both in the Carriage and Foot Ways, to be repaired and altered, and such Foot Ways, and (if they think fit) the Whole or any Part of any such Carriage Ways, to be paved in such Manner, and with such Sorts and Kinds of Materials, as they shall judge necessary or proper; and also to cause the said Streets, and other publick Passages and Places, to be cleansed, lighted, watched, and watered, and the Sides thereof, and also the Middle of any Squares which are or shall be made or set out, to be fenced or inclosed with Iron or other Rails, in such Parts and Places, and in such Manner, as the said Commissioners shall think proper, and all Incroachments, Obstructions, Nuisances, and Annoyances therein to be removed, and Drains, Sinks, Gutters, or Watercourses to be made, for conveying the Water off and from the said Streets, and other publick Passages and Places, in such Manner as they shall think proper; and that no Person shall, without the Consent of the said Commissioners, alter the Form, or break up the Ground or Pavement of the Carriage Ways or Foot Ways within any of the said Streets, or other publick Passages or

Places, or do the same otherwise than shall be directed by said Commissioners, upon the Pain of forfeiting the Sum of Twenty Shillings for every Offence.

Inhabitants to form, &c. the Streets, in the first Instance.

IX. Provided always, and be it further enacted, That the Carriage Ways within all such new Streets, and other publick Passages and Places, which are in Part set out and made, or which shall hereafter be set out or made, within the Limits of this Act, shall be levelled, formed, and covered with Gravel, not less than Six Inches Thick, and the Foot Ways paved in the whole Front of the respective Houses, Buildings, and Tenements, by and at the Expence of the respective Persons who for the Time being shall be entitled to such Houses, Buildings and Tenements, otherwise than as Tenants at Rack Rent, in such Manner as the said Commissioners shall, by Writing under their Hands, order and direct; or the Persons entitled as aforesaid to such Houses, Buildings, or Tenements, shall and may compound with the said Commissioners for the doing such Works, at or for such Sum of Money, to be paid in Advance to the Treasurer to the said Commissioners, as the said Commissioners, and the Persons entitled as aforesaid, shall agree upon, and in such Case the Work, in respect whereof such Composition shall be so agreed upon, shall be done and performed by the said Commissioners; and after such Work shall be completed, every such Street, or other publick Passage or Place, shall be repaired or altered, and may be paved by the said Commissioners in like Manner as hereinbefore directed with respect to any Street, or other publick Passage or Place, already set out or made within the Limits aforesaid; but if the Persons entitled as aforesaid to any such Houses, Buildings, or Tenements, shall not, within Three Months after being thereunto required by Writing under the Hands of the said Commissioners, do or perform their respective Proportions of such Work, or compound with the said Commissioners in respect thereof, and pay the Composition Money in Advance as aforesaid, then such Work shall be done by the said Commissioners, and the Expence thereof shall be borne and defrayed, and shall be paid to the Treasurer to the said Commissioners by the respective Persons not doing or performing such Work, or compounding for the same as aforesaid; and in case of Nonpayment thereof upon Demand, or if the Person or Persons liable to the

Payment of such Expences cannot be met with, or shall be under any Disability of acting for himself or herself, then it shall be lawful for the said Commissioners by virtue of a Warrant for that Purpose under the Hands of any Two Justices of the Peace for the County of *Middlesex*, to enter upon and take Possession of any House or other Building in Front of which such Work shall be done and performed, and to let or set the same, and receive the Rents and Profits thereof, until thereby or therewith such Expences, and all Charges attending the Recovery thereof, shall be fully paid and satisfied.

Lamps to be set up.

X. And be it further enacted, That it shall be lawful for the said Commissioners, and they are hereby empowered, from Time to Time, to cause such Lamp Irons or Lamp Posts to be put or affixed upon or against the Walls or Pallisades of any of the Houses, Tenements, or Buildings, or in such other Manner, within the said Streets and other publick Passages and Places, as they shall think proper; and also to cause such Number of Lamps, of such Sizes and Sorts, to be provided and affixed, or put upon such Lamp Irons and Lamp Posts, as they shall think necessary for lighting all or any of the said Streets, and other publick Passages and Places, and the said Lamps, and also the several Houses within the said respective Streets, and other publick Passages and Places, to be numbered; and if any Person shall wilfully break, throw down, take away, spoil, or damage any such Lamps, or any of the Irons, Posts, or other Furniture thereof, or wilfully extinguish the Light of any such Lamp, or deface or obliterate any such Number, every Person so offending shall, for every such Offence, forfeit and pay any Sum not exceeding Twenty Shillings, whereof One Moiety shall go to the Informer, and such Offender shall also pay to the said Commissioners, or to such Person as they shall appoint to receive the same, such Sum of Money as shall be a full Satisfaction for the Damage so done; and in case any Person shall carelessly, negligently, or accidentally break, throw down, or otherwise spoil or damage any of the said Lamps, or the Irons, Posts, or other Furniture thereof, and shall not, upon Demand, make Satisfaction for the Damage done thereto, it shall be lawful for any Justice of the Peace for the County of *Middlesex*, upon Proof thereof made by the Oath of any credible Witness, or on the Confession of the Party, to award such Sum of Money, by way of Satisfaction for such Damage, as such Justice shall think

reasonable, and in Default of Payment thereof, upon Demand, to cause the same to be levied by Distress and Sale of the Goods and Chattels of the Person who shall have done such Damage, rendering the Overplus (if any) after deducting the Charges of prosecuting such Complaint, and of such Distress and Sale, to the Owner of such Goods and Chattels, upon Demand.

Commissioners may contract for performing the Works.

XI. And be it further enacted, That the said Commissioners may from Time to Time, if they think proper, contract and agree with any Person or Persons for the doing and performing all or any of the Works by this Act authorized or directed to be done and performed; and in case any of the Works to be done and performed by any such Contractor shall not be well and sufficiently done and performed according to such Contract, the said Commissioners may cause an Action to be brought, in any of His Majesty's Courts of Law at *Westminster*, in the Name of their Clerk, against any such Contractor for any Penalty contained in his Contract; and on Proof of the signing of the said Contract, and Nonperformance thereof, the said Commissioners shall be entitled to, and shall recover the Penalty contained in such Contract: Provided always, that it shall be lawful for the said Commissioners (if they think fit) to compound and agree with any Contractor for any Penalty incurred by him, for the Breach or Nonperformance of any such Contract, for such Sum of Money as the said Commissioners shall think proper, not being less than the Injury or Damage sustained by the Breach or Nonperformance of such Contract, and of all Costs, Charges, and Expences which shall be occasioned thereby.

Incroachments to be removed.

XII. And be it further enacted, That the respective Occupiers of Houses and other Buildings within the several Streets, and other publick Passages and Places aforesaid, shall, at their own Costs and Charges, within such Time and in such Manner as the said Commissioners shall from Time to Time (by Notice in Writing under their Hands, to be delivered to such respective Occupiers, or left at their respective Dwelling Houses) order and direct, cause all Signs belonging to, and which shall not be fixed or placed flat upon such respective Houses or other Buildings, to be taken down, and fixed or placed flat on the Fronts thereof; and all Sign Irons, Sign Posts, and

other Posts, Penthouses, Spouts, Steps, Shop Windows and Cellar Windows, and other Incroachments, Obstructions, Projections, and Annoyances, which now or hereafter shall belong to such respective Houses or other Buildings, and which are or shall be incommodious to Foot Passengers, to be removed, altered, or reformed, and also to cause the Water to be conveyed from the Roofs, Cornices, and Penthouses of or belonging to such respective Houses or other Buildings, by proper and sufficient Pipes or Trunks, to be affixed to the Sides of such Houses and other Buildings respectively, and from thence by proper Drains into the common Drains or Sewers; and in case any such Occupier shall neglect or refuse so to do, it shall be lawful for the Commissioners to cause the same to be done, and to cause all the Costs and Charges attending the same to be levied by Distress and Sale of the Goods and Chattels of such Occupier, by Warrant under the Hand and Seal of any Justice of the Peace for the County of *Middlesex* (which Warrant such Justice is hereby required and authorized to grant), rendering the Overplus (if any) when demanded to the Person whose Goods and Chattels shall be so distrained and sold; and if the Tenant in Possession of any such House or other Building shall remove, alter, or reform any such Incroachments, Obstructions, Projections, or Annoyances as aforesaid, according to the Directions of the said Commissioners (except such as shall be put up or occasioned by such Tenant), it shall be lawful for every such Tenant to deduct and retain the Charges and Expences thereof out of his or her Rent, and the Landlord of every such House or other Building is hereby required to allow the same accordingly: Provided always, that nothing herein contained shall extend to authorize the said Commissioners to stop up any Cellar Window, where there shall be no other Way from the Street or other publick Passage or Place into such Cellar, unless the said Commissioners shall make or provide some other commodious and sufficient Way into such Cellar.

Penalty on occasioning Nuisances.

XIII. And be it further enacted, That if any Person shall run or drive any Wheel, Sledge, Wheelbarrow, or any Carriage whatsoever, upon any of the said Foot Pavements; or shall wilfully ride, drive, or lead any Horse, or other Beast or Cattle, along or upon any of the said Foot Pavements; or shall within any Street, or other publick Passage or Place within the Limits

of this Act, slaughter, dress, or cut up any Swine, or other Beast, or hoop, cleanse, or scald any Cask, or hew or saw any Stone, Wood, or Timber, or sift, skreen, or slack any Lime, or bind or make the Wheel of any Carriage, or shoe, bleed, dress, or farry, or turn or drive loose any Horse, or set, place, or expose to Sale any Goods, Wares, or Merchandize, either on the Foot Ways or Carriage Ways of any of the said Streets, or other publick Passages or Places, so as to obstruct or incommode the Passage of any such Foot Way or Carriage Way, every Person offending, in any of the Cases aforesaid, shall for every such Offence forfeit and pay the Sum of Five Shillings.

Penalty on leaving Carriages, &c. in the Streets.

XIV. And be it further enacted, That if any Waggon, Cart, or other Carriage, shall be left to stand or remain in any of the Streets, or other publick Passages or Places, within the Limits of this Act, with or without Horses or other Cattle, for any longer Time than shall be necessary for the loading or unloading thereof; or if any Stage Coach, Post Chaise, or other Carriage let to hire, shall be left to stand or remain in any such Street, Passage, or Place, with or without Horses, for any longer Time than shall be reasonable and necessary for taking up or setting down the Passengers, or for loading or unloading their Baggage (except in such Places as the said Commissioners shall appoint for the Handing of Coaches, Chaises, or other Carriages, which the said Commissioners are hereby authorized to do if they think proper); or if any Horse or other Cattle shall be suffered to stand at the Door or House of any Person so as to obstruct or incommode the Passage of any of the said Footways; or if any Timber, Bricks, Stones, Dung, Wood, Goods or other Things shall be said or placed and left to remain in any of the said Streets, or other publick Passages or Places, for any longer Time than shall be necessary for removing or housing the same; or if any Ashes, Rubbish, Dust, Dirt, or other Nuisance or Annoyance, shall be thrown, cast, or laid in any of the said Streets, or other publick Passages or Places, and suffered to remain for any longer Time than shall be necessary for removing the same; then and in every such Case the Owner or Driver of every such Carriage, and the Owner of such Timber or other Things aforesaid, and the Person who shall throw, cast, or lay any Dung, Ashes, Rubbish, Dust, Dirt, or other Nuisance or Annoyance at aforesaid, shall, for every such Offence, forfeit and pay the Sum of Five Shillings; and

if any such Timber or other Things, or such Dung, Ashes, Rubbish, Dust, Dirt, or other Nuisance or Annoyance, shall be suffered to remain in any of the said Streets or other publick Passages or Places, longer than shall be necessary as aforesaid, the Surveyor to the said Commissioners is hereby authorized and empowered to cause the same to be removed to such Place as he shall think proper, and the Expence thereof shall be paid by the Person liable to the Payment of the said Penalty, and shall and may, in case of Nonpayment on Demand, be recovered in like Manner as any Penalty is herein-after authorized or directed to be recovered.

Hoards, &c. may be erected.

XV. Provided always, and be it further enacted, That nothing herein-before contained shall hinder or prevent any Person from erecting or building any Hoard, or other Thing by way of Inclosure, for the Purpose of making Mortar, or depositing Bricks, or Stone, or working any Lime, Sand, or other Materials used in Building, or to subject him to any Penalty on account thereof, provided such Person shall have a Licence for that Purpose, under the Hand of the Surveyor to the said Commissioners (which Licence such Surveyor is hereby required forthwith to grant to any Person applying for the same, and for which he shall receive the Sum of One Shilling, and no more): Provided nevertheless, that if any Person shall erect any such Hoard or Inclosure of greater Dimensions, or shall suffer any Hoard or Inclosure to remain for any longer Time than shall be allowed in and by such Licence, every Person so offending shall for every such Offence forfeit and pay any Sum not exceeding Five Shillings for every Day such Hoard or Inclosure, or any Part thereof, shall be continued after Notice given by the Surveyor to take down and remove the same.

Watchman to be appointed.

XVI. And be it further enacted, That the said Commissioners may, and are hereby authorized and empowered, from Time to Time, to appoint such Number of Watchmen, to be employed within the Limits of this Act, for so long Time in the Night, under such Regulations, and for such Wages, as they shall think proper, and to provide proper Boxes or Places for their Reception, and also proper Arms and Weapons for the Discharge of their Duty; and if any Watchman appointed as aforesaid shall refuse or neglect to

perform his Duty, or shall in anywise misbehave himself in the Execution of his Office, he shall forfeit and pay, for every such Offence, any Sum not exceeding Ten Shillings.

Duty of Watchmen.

XVII. And be it further enacted, That the Watchmen to be appointed and employed as aforesaid shall, during the Time of their being upon Duty, use their utmost Endeavours to prevent any Mischief by Fire, and also any Burglaries, Robberies, Affrays, and other Outrages and Disorders, within the Limits of this Act; and it shall be lawful for the said Watchmen, or any of them, and they are hereby respectively authorized and required, during the Time they are on Duty, to apprehend and secure all Malefactors, Rogues, Vagabonds, and other disorderly Persons, within the Limits of this Act, who shall disturb the publick Peace, or whom they shall have Cause to suspect of any evil Design, and to secure and keep in safe Custody every such Person, in order that he or she may be conveyed, as soon as conveniently may be, before some Justice of the Peace for the County of *Middlesex*, to be examined and dealt with according to Law; and if any Person or Persons shall assault or resist, or shall promote or encourage the assaulting or resisting, any of the said Watchmen in the Execution of their Duty, every such Person shall, for every such Offence, forfeit and pay any Sum not exceeding Five Pounds; and if any Victualler or Keeper of any Publick House shall knowingly harbour or entertain any Watchman employed within the Limits of this Act, or permit or suffer any such Watchman to be and remain in his House during any Part of the Time appointed for his being on Duty, every Victualler or Keeper of such Publick House shall, for every such Offence, forfeit and pay any Sum not exceeding Twenty Shillings.

Power to water the Streets.

XVIII. And, in order that the said Streets, and other publick Passages and Places, may be properly watered, be it further enacted, That the said Commissioners shall have full Power and Authority to cause such Number of Wells and Pumps to be dug, sunk, and made, in any of the said Streets, or other publick Passages or Places, as they shall think proper, and from Time to Time to alter the same as they shall see Occasion; provided that no such

Well or Pump shall be sunk or made so as to injure any House or other Building, or any Vault or Cellar under any of the said Streets, or other publick Passages or Places: And it shall be lawful for the said Commissioners, if they think proper, to agree with the Owner of any private Ground, either within the Limits of this Act or elsewhere, or with any Water Company, for supplying Water, or for sinking or making any Wells or Pumps for the Purposes of this Act, at or for such Sum of Money or annual Rent, as the said Commissioners shall judge reasonable.

Annual Sum to be paid to the Surveyors of the Highways for the Parish, in lieu of the Highway Rate.

XIX. And whereas, previous to the erecting any Buildings upon the Ground within the Limits of this Act, the same was rated and assessed to the Repairs of the Highways, within the said Parish of *Saint Luke Chelsea*, at or about the annual Sum of Four Pounds, be it therefore further enacted, That the said Commissioners shall, and are hereby authorized and required, out of the Money arising by virtue of this Act, to pay to the Surveyors of the Highways for the said Parish of *Saint Luke Chelsea*, or any of them, the Sum of Four Pounds upon the Twenty-ninth Day of *September* in every Year, the First Payment thereof to be made upon the Twenty-ninth Day of *September* One thousand seven hundred and ninety; which annual Payment shall be in lieu and in full Satisfaction and Discharge of and for all Statute Duty and Composition, or other Payment, Charge, or Expence upon, for, or towards the repairing, or on Account of any Defect in the Repairs of the Highways within any Part of the said Parish of *Saint Luke Chelsea*, not being within the Limits of this Act; and in case such annual Sum shall at any Time be in Arrear for the Space of Thirty Days after the same shall become due and be demanded, the same shall and may be recovered from the Treasurer to the said Commissioners, in like Manner as any Penalty is herein-after authorized or directed to be recovered.

The Streets and Highways within the Limits of the act to be repaired distinct from the other Parts of the Parish.

XX. And be it further enacted, That none of the Inhabitants of any Streets, or other publick Passages or Places within the Limits of this Act, shall be subject or liable to the Performance of any Statue Work, or to the Payment

of any Rate, Assessment, or Sum of Money, other than the said annual Sum of Four Pounds, for or towards repairing, or on account of any Defect in the Repairs of the Highways within any Part of the said Parish of *Saint Luke* (not being within the Limits of this Act); and that it shall not be lawful for any Surveyor of the Highways within the said Parish to use or exercise any Power, Jurisdiction, or Authority whatsoever, within the Limits of this Act; and that none of the Inhabitants of any other Part of the said Parish of *Saint Luke* shall be subject to the Performance of any Statute Duty, or to any Composition in lieu thereof, or to any other Charge or Expence, for or towards the repairing or amending, or on at count of any Street or Highway within the Limits of this Act; any Law, Statute, or Custom to the contrary hereof notwithstanding.

Money to be raised by a Rate.

XXI. And, for raising Money to enable the said Commissioners to carry the several Purposes of this Act into Execution, be it further enacted, That the said Commissioners shall, and are hereby authorized and empowered, Once in every Year, between *Lady Day* and *Midsummer Day*, to rate and assess such Sums of Money as they shall from Time to Time judge necessary, upon the respective Occupiers of the several Houses, and other Buildings, Lands, and Grounds, within the Limits of this Act, not exceeding Two Shillings and Sixpence in the Pound of the annual Value of such respective Houses and other Buildings, with the Gardens and Yards hereunto belonging or held therewith, and not exceeding One Shilling in the Pound of the annual Value of the other Lands or Grounds within the said Limits; such respective annual Values to be ascertained by the respective Sums the same shall be rated to the Relief of the Poor, or in such other Manner as the said Commissioners shall think proper; and the Full Year for which such Rates or Assessments shall be made shall commence upon the Twenty-fourth Day of *June* One thousand seven hundred and ninety; and the Money so rated and assessed shall from Time to Time be paid to the Collectors to be appointed as aforesaid, at such Time or Times in every Year, and in such Manner, as the said Commissioners shall order and direct, and shall be paid over by such Collectors into the Hands of the Treasurer to the said Commissioners.

Empty Houses to be charged with Half Rates.

XXII. Provided always, That where any of the said Houses or other Buildings, after the same shall have been Once inhabited or occupied, shall at the Time of making any of the said Rates or Assessments be empty or unoccupied, then and in every such Case it shall be lawful for the said Commissioners to rate and assess such Premises respectively at One Half of such Rates or Assessments, and no more, during the Time only such Premises shall be empty or unoccupied; and also in case any such Premises, after the making of any such Rate or Assessment, shall become empty or unoccupied, One Half only of such Rate or Assessment shall be charged on such Premises respectively, for and during so long Time as the same shall continue empty or unoccupied; and than and in every such Case the said Rate or Assessment, and all Arrears due thereon, shall be paid by the Person or Persons for the Time being entitled to such Premises, or by the First or any other Tenant or Occupier thereof, and every such Tenant or Occupier shall and may and is hereby authorized to deduct and retain the same out of his or her Rent, and the Person or Persons for the Time being entitled to such Premises is and are hereby required to allow such Deduction; and that where any House, Building, Tenement, or Hereditament, in respect whereof any Rate or Assessment shall be made as aforesaid, shall be let to more than One Tenant, any One or more of such Tenants shall be deemed the Occupier or Occupiers thereof for the Purposes of this Act.

Proportion of Rates to be paid by Persons removing.

XXIII. Provided also, That in all Cases where any Person shall remove from or quit any House, Building, Tenement, or Hereditament, which shall be rated or assessed by virtue of this Act, such Person shall be liable to such Rate or Assessment in Proportion to the Time that he or she occupied the same; and in all Cases where any Person shall come into or occupy any House, Building, Tenement, or Hereditament, rated or assessed as aforesaid, out of or from which any other Person, who shall have been rated or assessed for the same, shall be removed, or which at the Time of making any Rate or Assessment was empty or unoccupied, the Person coming into or occupying the same shall be liable to pay such Rate or Assessment in respect thereof in Proportion to the Time that he or she occupied the same;

which said respective Proportions, in case of Dispute, shall be settled and ascertained by the said Commissioners.

Recovery of Rates.

XXIV. And be it further enacted, That in case any Person who shall be rated or assessed, or subject or liable to the Payment of any Rate or Assessment by virtue of this Act, shall refuse or neglect to pay any such Rate or Assessment to any Collector to be appointed as aforesaid, for the Space of Ten Days after personal Demand thereof made, or Demand in Writing left at the usual or last Place of Abode of such Person, it shall be lawful for any Justice of the Peace for the County of *Middlesex*, upon Proof made upon Oath of such Demand and Nonpayment, by Warrant under his Hand and Seal, to authorize and direct the said Collector to levy such Rate or Money so in Arrear, together with the Costs and Charges attending the same, to be ascertained by such Justice, by Distress and Sale of the Goods and Chattels of the Person so refusing or neglecting to pay as aforesaid, rendering the Overplus (if any) to the Owner of such Goods and Chattels, on Demand.

Landlords to bear so much of the Rate as shall exceed 2s.

XXV. Provided always, and be it further enacted, That whenever the said Rates or Assessments shall in any Year exceed Two Shillings in the Pound of the annual Value of the said Houses and other Buildings, and the Gardens and Yards thereunto belonging, or held therewith as aforesaid, so much of the said Rates or Assessments as shall exceed Two Shillings in the Pound of the annual Value of such of the said Houses and other Buildings, Gardens, and Yards, as shall be occupied by Tenants at Rack Rent, or at the full improved annual Value, shall be borne by their respective Landlords, and such respective Tenants shall and may, and are hereby authorized to deduct and retain the same out of their respective Rents, and their Landlords are hereby required to allow such Deduction.

Commissioners may borrow Money, and assign the Rates as a Security.

XXVI. And, for the more speedy raising Money for the Purposes of this Act, be it further enacted, That it shall be lawful for the said Commissioners, and they are hereby empowered from Time to Time to borrow and take up at Interest any Sum or Sums of Money upon the Credit of the Rates or Assessments herein before granted, and by Writing under their Hands and Seals to mortgage or assign over the said Rates or Assessments, to the Person or Persons who shall advance or lend such Money, or his or their Trustee or Trustees, as a Security for the Money so to be borrowed, together with the Interest for the same; and every such Assignment shall be in the Words or to the Effect following, (*videlicet*).

Form of Assignment.

By virtue of an Act of Parliament, made in the Thirtieth Year of the Reign of King *George* the Third, intituled [*set forth the Title of the Act*], we of the Commissioners appointed by virtue of the said Act, in consideration of the Sum of advanced and lent by *A. B.* to *C. D.* the Treasurer appointed in pursuance of the said Act, upon the Credit, and for the Purposes of the said Act, do grant and assign unto the said *A. B.* his Executors, Administrators, and Assigns, such Proportion of the Rates or Assessments arising by virtue of the said Act, at the said Sum of doth or shall bear to the whole Sum which is or shall be borrowed upon the Credit of the said Act, to be had and holden from this Day of until the said Sum of with Interest, at *per Centum per Annum* for the same, to be paid half-yearly, shall be repaid and satisfied. In Witness whereof we have hereunto set our Hands and Seals, this Day of

And every such Assignment shall be good, valid, and effectual in the Law.

Money may be raised by Annuities.

XXVII. Provided always, That in case the said Commissioners shall think it advisable to raise all or any Part of the Money necessary for the Purposes of this Act by the granting of Annuities for Lives, then it shall be lawful for the said Commissioners, and they are hereby authorized and empowered, by Writing under their Hands and Seals, to grant Annuities to any Person or Persons who shall contribute, advance, and pay into the Hands of the

Treasurer to the said Commissioners any Sum or Sums of Money for the absolute Purchase of any Annuity, to be paid and payable during the natural Life of every such Contributor, or the natural Life of such Person as shall be nominated by or on the Behalf of such Contributor at the Time of the Payment of his or her Contribution or Purchase Money, and either with or without Benefit of Survivorship, as the said Commissioners shall think proper, so that no such Annuity do exceed the Rate of Ten Pounds for One hundred Pounds for a Year; and the Grant of every such Annuity shall be in the Words or to the Effect following; *videlicet*,

Form of Grant.

WE of the Commissioners appointed by or in pursuance of an Act of Parliament, made in the Thirtieth Year of the Reign of King *George* the Third, intituled, [*set forth the Title of the Act*], in Consideration of the Sum of paid by *A. B.* to the Treasurer appointed in pursuance of the said Act, do hereby grant unto the said *A. B.* his Executors, Administrators, and Assigns, an Annuity or yearly Sum of out of the Rates or Assessments arising by virtue of the said Act; which Annuity or yearly Sum of shall be paid to the said *A. B.* his Executors, Administrators, and Assigns, at upon the in every Year during and the First Payment thereof shall be made upon the Day of next ensuing the Date of these Presents. In Witness whereof we have hereunto for our Hands and Seals, the Day of in the Year of our Lord

And every such Grant shall be good, valid, and effectual in the Law; and every Annuity so to be granted as afore said shall be, and is hereby charged upon, and shall be payable and paid, free from all Taxes and Deductions, out of the said Rates or Assessments: Provided nevertheless, that no greater Sum in the Whole than Ten thousand Pounds shall be raised by Loan or Mortgage, and by the Sale or granting of Annuities as aforesaid; and that, before any such Money shall be borrowed, or Annuity granted, fourteen Days Notice at the least shall be given in some Newspaper published in *London* or *Westminster*, signifying the Intention of borrowing such Money, or granting such Annuities.

Security may be transferred.

XXVIII. And be it further enacted, That it shall be lawful for the Persons entitled to any of the Securities for the Money borrowed, or for the Annuities granted as aforesaid, by Writing under their Hands and Seals indorsed thereon, to transfer the same to any Person or Persons in the Words or to the Effect following:

Form of Transfer.

I *A. B.* do hereby assign the within Mortgage [*or Grant of Annuity*], and all my Right and Title in and to the Principal Money and Interest [*or Annuity*, and all Arrears now due thereon] thereby secured, unto *C. D.* his Executors Administrators, and Assigns. Dated the Day of

And Entries or Memorials of all Mortgages or Assignments, and Grants of Annuities, which shall be made in pursuance of this Act, and of all Transfers thereof, expressing in Words at Length the Names, Additions, Places of Abode, and other proper Descriptions of all such Persons as shall from Time to Time be entitled to the Principal Money and Interest, or the Annuities thereby respectively secured, shall be entered in a Book, to be kept for that Purpose, by the Clerk to the said Commissioners, to which Book any Person interested shall, at all seasonable Times, have Access, and shall have free Liberty to inspect the same, without Fee or Reward; and for the Entry of every such Assignment the said Clerk shall be paid Two Shillings and Sixpence, and no more; and every such Transfer shall entitle the Person or Persons, to whom the same shall be made, and his, her, or their Executors, Administrators, and Assigns, to the Benefit of the Security thereby transferred; and all Persons to whom such Mortgages or Assignments, or Grants of Annuity, shall be made, or who shall be entitled to the Money thereby secured, shall be, in Proportion to the Sums therein respectively mentioned. Creditors on the said Rates or Assessments equally one with another, without any Preference in respect to the Priority of advancing such Money, or the Dates of any such Mortgages or Assignments, or Grants of Annuity.

Application of the Money.

XXIX. And be it further enacted, That all the Money to arise by or from the said Rates or Assessments, and which may be borrowed or advanced for the Purchase of any Annuities on the Credit or Security thereof, shall be applied, in the first Place, in paying and discharging the Expences attending the obtaining and passing this Act, and afterwards from Time to Time in paying the Interest of the principal Money to be borrowed, and the Annuities to be granted as aforesaid, and in defraying the Expences of paving, repairing, cleansing, lighting, watching, and watering the said several Streets, and other publick Passages and Places, and of carrying this Act into Execution, and in paying off the said principal Money, in such Manner as the said Commissioners shall think proper.

Recovery of Penalties.

XXX. And be it further enacted, That all Penalties and Forfeitures by this Act imposed (the Manner of recovering whereof is not hereby otherwise directed) shall be levied and recovered by Distress and Sale of the Goods and Chattels of the Offender or Offenders, by Warrant under the Hand and Seal of any Justice of the Peace for the County or Place wherein the Offender or Offenders shall be or reside (which Warrant such Justice is hereby empowered to grant, upon the Confession of the Party, or upon the Information of any credible Witness upon Oath), and such Penalties and Forfeitures shall (if not directed to be otherwise applied by this Act) be paid to the Treasurer to the said Commissioners, and applied for the Purposes of this Act; and in case sufficient Distress shall not be found, or such Penalties or Forfeitures shall not be forthwith paid, such Justice is hereby authorized and required, by Warrant under his Hand and Seal, to cause the Offender or Offenders to be committed to the common Gaol, or House of Correction, there to remain without Bail or Mainprize, for any Time not exceeding Three Calendar Months, unless such Penalties or Forfeitures, and all reasonable Charges attending the Recovery thereof, shall be sooner paid and satisfied.

Inhabitants may give Evidence.

XXXI. And be it further enacted, That in all Actions Prosecutions, Informations, Causes, and Proceedings whatsoever, relating to or concerning the Execution of this Act, any Inhabitant residing within the

Limits of this Act shall be admitted and allowed to give Evidence, notwithstanding such Inhabitant shall be charged with, and liable to pay any Rate or Assessment by virtue of this Act.

Appeal.

XXXII. Provided always, and be it further enacted, That if any Person shall think himself or herself aggrieved by any Rate or Assessment which shall be made in pursuance of this Act, he or she may apply to the said Commissioners, at their First Meeting to be holden after the Expiration of Five Days after the demanding of such Rate or Assessment; and the said Commissioners are hereby authorized and empowered, if they shall think such Person aggrieved, to give such Relief in the Premises as to them shall seem reasonable; and if any such Person shall be dissatisfied with the Determination of the said Commissioners therein, or if any Person shall think himself or herself aggrieved by any other Matter or Thing to be done in pursuance of this Act, every such Person may appeal to the Justices at any General or Quarter Session of the Peace to be holden for the County of *Middlesex*, within Four Calendar Months next after the Cause of Complaint shall have arisen, such Appellant first giving Fourteen Days Notice at the least in Writing of his or her Intention to bring such Appeal, and of the Matter thereof, to the Clerk to the said Commissioners, and within Five Days after such Notice entering into a Recognizance before some Justice of the Peace for the said County, with Two sufficient Sureties, conditioned to try such Appeal, and abide the Order of, and to pay such Costs as shall be awarded by, the Justices at such Sessions, and the Justices at such Sessions shall hear and finally determine the Cause and Matter of such Appeal in a summary Way, and award such Costs to the Party appealing or appealed against, as they shall think proper; and their Determination therein shall be final, binding, and conclusive to all Parties, and to all Intents and Purposes.

Limitation of Actions.

XXXIII. And be it further enacted, That no Action or Suit shall be commenced against any Person, for any Thing to be done in pursuance of this Act, until Thirty-one Days Notice thereof shall be given to the Clerk to the said Commissioners, or after sufficient Satisfaction, or Tender thereof, hath been made to the Party aggrieved, or after Three Calendar Months next

after the Fact committed; and every such Action or Suit shall be brought and tried in the County of *Middlesex*, and not elsewhere; and the Defendant in every such Action or Suit shall and may plead the General Issue, and give this Act and the special Matter in Evidence at any Trial to be had thereupon, and that the same was done in pursuance and by the Authority of this Act; and if the same shall appear to be so done, or if such Action or Suit shall be brought before Thirty-one Days Notice thereof shall be given as aforesaid, or after a sufficient Satisfaction shall be made or tendered as aforesaid, or after the Time herein-before limited for bringing the same, or shall be brought in any other County or Place than as aforesaid, then the Jury shall find for the Defendant; and upon such Verdict, or if the Plaintiff shall become Nonsuit, or discontinue his or her Action or Suit after the Defendant shall appear, or if upon Demurrer Judgement shall be given against the Plaintiff, then the Defendant shall recover Treble Costs, and have such Remedy for the same as any Defendant hath for Costs of Suit in Other Cases of Law.

Publick Acts.

XXXIV. And be it further enacted, That this Act shall be deemed, adjudged, and taken to be a Publick Act; and shall be judicially taken Notice of as such by all Judges, Justices, and other Persons whomsoever, without specially pleading the same.

FINIS.

ANNO QUADRAGESIMO TERTIO GEORGII III. Regis.

CAP. XI.

An Act for amending, altering, and enlarging the Powers of an Act, passed in the Thirtieth Year of the Reign of His present Majesty, intituled, An Act for forming and keeping in Repair the Streets, and other publick Passages and Places within a certain District in the Parish

of *Saint Luke, Chelsea*, in the County of *Middlesex*, called *Hans Town*, and for otherwise improving the same.

[24th March 1803.]

WHEREAS by an Act, made in the Thirtieth Year of the Reign of His present Majesty, intituled, *An Act for forming and keeping in Repair the Streets, and other publick Passages and Places, within a certain District in the Parish of Saint Luke, in the County of Middlesex, called Hans Town, and for otherwise improving the same*, certain Powers were given and granted to the Commissioners of the said District for the several Purposes in the said recited Act mentioned and contained: And whereas the Commissioners of the said District, acting under the said Act, have proceeded in the Execution thereof to the great Benefit of the said District, and of the Publick at large; but that, in order more effectually to carry the Purposes of the said Act into Execution, it is expedient that the Powers thereof should be amended, altered, and enlarged: May it therefore please Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That, from and after the Commencement of this Act, it shall and may be lawful for the Commissioners of the said District to nominate and appoint any Person or Persons, and to purchase any Number of Carts and Horses for the Purpose of cleansing the Streets, and other publick Passages and Places within the Limits of the said District, and of carrying away the Dust, Dirt, Cinders, or Ashes from any House or Houses, or other Premises within the same, or to contract with any Person or Persons for so doing.

**Contractors to bring proper Carriages into the Streets,
and to give Notice of their Approach.**

II. And be it further enacted, That the Person or Persons employed by or contracting with the said Commissioners for cleansing the said Streets, and other publick Passages and Places as aforesaid, or those employed under such Contractor or Contractors, shall Twice in every Week or oftener, bring or cause to be brought Carts or other proper Carriages into all the Streets, and other publick Passages and Places as aforesaid, where such Carts or Carriages can pass, and at or before their Approach, by sound of Bell, or

with an audible and distinct Voice, give Notice to the Inhabitants of their coming, and give the like Notice in every Court, Alley, or Place into which the said Carts or Carriages cannot pass.

**Penalty on Persons collecting Dust, etc.
who are not authorized to do so.**

III. And be it further enacted, That if any Person or Persons other than the Person or Persons so employed by or contracting with the said Commissioners for cleansing the Streets, and other publick Passages and Places, under their Direction, or those employed under such Contractor or Contractors, shall, on any Pretence whatsoever, go about to collect or gather, or shall ask for, receive, or carry away any Dust, Dirt, Cinders, or Ashes, from any House or other Premises within the Limits aforesaid, it shall and may be lawful to and for any Justice of the Peace for the said County of *Middlesex*, upon Complaint to him made, to grant a Warrant to bring before him such Offender or Offenders, at the Time and Place as in such Warrant shall be specified, or for any Person or Persons who shall see such Offence committed to seize, and also for any other Person or Persons to assist in seizing the Offender or Offenders, together with the Horses, Asses, Cattle, Carts, Trucks, Wheelbarrows, or other Carriages or Implements made use of for carrying away the same, and by the Authority of this Act, and without any other Warrant to convey him, her, or them before such Justice, and such Justice shall, and he is hereby authorized and required, to examine upon Oath, the Person or Persons apprehending such Offender or Offenders, or any Witness or Witnesses who shall appear to give Information touching such Offence; and if the Party or Parties shall be convicted of going about to collect or gather, asking for, receiving, or carrying away any Dust, Dirt, Cinders, or Ashes from any House or other Premises within the Limits aforesaid, not being the Person or Persons so employed by or contracting with the said Commissioners, or acting under his or then Authority, he, she or they shall respectively, for the First Offence, forfeit and pay the Sum of Ten Shillings, for the Second Offence the Sum of Twenty Shillings, and for the Third and every subsequent Offence the sum of Forty Shillings; and One Moiety of every such Penalty shall be paid to the Informer or Informers, or to the Person or Persons who shall apprehend the Offender or Offender, and the other Moiety to the

Purposes of the said recited Act and this Act; and if such Offender or Offenders shall not immediately on Conviction pay the said Penalty or Penalties, such Justice is hereby required to direct such Horses, Asses, Cattle, Carts, Trucks, Wheelbarrows, or other Carriages or Implements which shall have been so seized, to be appraised and sold, and after deducting out of the Monies to arise by such Sale the Penalty or Penalties incurred, together with the reasonable Charges and Expences of such Distress and Sale, the Overplus thereof shall be returned to the Party or Parties whose Horses or other Things shall be appraised and sold; and in case there shall have been no such Seizure as aforesaid, or if the Horses, Asses, Cattle, or other Things which shall be so appraised and sold, shall not produce a sufficient Sum of Money to pay the said Penalty or Penalties Charges and Expences, then if such Offender or Offenders shall not immediately upon Conviction pay the said Penalty or Penalties, or such Part or Parts of the said Penalty or Penalties, Charges and Expences, which shall remain over and above the Produce of the Horses, Assess Cattle, and other Things so seized and sold, then such Justice is hereby required to commit such Offender or Offenders to the Common Gaol or House of Correction for the said County of *Middlesex*, there to be kept to hard Labour for any Term not exceeding Thirty Days, nor less than Ten Days, unless such Penalty or Penalties, or such Part or Parts thereof as aforesaid, shall be sooner paid and satisfied.

Carriage Ways of the Streets to be covered with Gravel, etc.

IV. And be it further enacted, That it shall and may be lawful to and for the said Commissioners to direct all and every Person and Persons, who are by the said recited Act required to level, form, and cover with Gravel, not less than Six Inches thick, the Carriage Ways of all such Streets, and other publick Passages and Places, within the said District, in the First Place properly and effectually to fill up the same; and also to direct all and every Person and Persons, who are required to pave the Foot Ways in the whole Front of their respective Houses, Buildings, and Tenements, to set up and erect proper and sufficient Posts, at such Distances and in such Manner, as the said Commissioners shall order and direct.

Lessees of Ground to compound for forming Carriage Ways, etc.

V. And whereas there are and may be several Pieces or Parcels of Ground within the Streets, and other publick Passages and Places, already or hereafter to be set out or made within the said District, unbuilt upon, the Carriage and Foot Ways to and in the Fronts whereof are neither filled up, levelled, formed, covered with Gravel, or paved, nor Posts set up and erected, and it would be a Means of forwarding the good Purposes of the said recited Act and this Act, if Builders or others, who by Law are liable to fill up, level, form over with Gravel, and pave the same, were to compound with the said Commissioners; be it therefore further enacted, That it shall and may be lawful to and for the said Commissioners, or any Three or more of them, to view and inspect all Streets, and other publick Passages and Places, already or hereafter to be set out or made within the said District; and if upon such View they shall be of Opinion that the same, or any Part or Parts thereof, is or are fit and proper for the Area or Fence Walls abutting thereon to be Built, and the Carriage and Foot Ways to be filled up, levelled, formed, covered with Gravel, or paved, or Posts to be set up and erected, the said Commissioners, or any Three or more of then, at any Meeting to be held in pursuance of the said recited Act, after such View, shall and may order their Surveyor or Surveyors, or other Person or Persons by them appointed for that Purpose, to give Notice to the Lessee or Lessees of all and every such Lands or Grounds, or leave the same at his, her, or their last or usual Place of Abode, or with his, her, or their known Servant or Servants, or if no such Lessee or Lessees can be found, then such Notice shall be stuck against the said Premises, or any Part thereof, which Notice shall require such Lessee or Lessees to meet the said Commissioners, or any Three or more of them, at the Time and Place to be therein mentioned (not being less than Six Days from the Date of such Notice), to compound for building such Area or Fence Walls, and for filling up, levelling, forming, and covering the Carriage Ways with Gravel, not less than Six Inches thick, and paving the Foot Ways in the whole Front thereof, and for setting up and erecting Posts; and if such Lessee or Lessees shall not attend, or shall not compound and agree with the said Commissioners, or any Three or more of them as aforesaid, then it shall and may be lawful to and for the said Commissioners, or any Three or more of them, to order the said Area or Fence Walls to be built, the said Carriage and Foot Ways to be filled up, levelled, formed, covered with Gravel, and paved, and Posts to be set up and erected forthwith, or as soon as conveniently may be, and all the

Charges and Expences attending the building such Walls, filling up, levelling, forming, covering with Gravel, and paving and setting up and erecting Posts, shall be paid by the respective Lessee or Lessees, and shall be recovered and levied by Distress and Sale of their Goods and Chattels, in the same Manner at the Rates and Assessments said by virtue of the said recited Act are therein directed to be levied and recovered.

Publick Buildings and Dead Walls to be rated.

VI. And for as much as it is reasonable that all publick Buildings and all dead Walls and void Spaces of Ground within the said District should be rated and assessed in a due Proportion for the several Purposes of the said recited Act and this Act, be it therefore further enacted, That it shall and may be lawful to and for the said Commissioners at their Discretion, and they are hereby required from Time to Time to rate and assess towards the Purposes of the said recited Act and this Act, all Chapels, Meeting Houses, Markets, Warehouses, and all other publick Buildings whatsoever, within the said District, which now is, or are, or hereafter may be built, and which are not charged in respect of any Dwelling House by the Pound Rate, or otherwise by virtue of the said recited Act, at a Rate not exceeding Two Shillings in the Pound, according to the Directions of the said recited Act, and where the annual Value cannot be fully ascertained, then and in either of the said Cases the same shall be charged and assessed at a Rate not exceeding Nine-pence *per* Square Yard in any One Year of the Pavement and Road paved, gravelled, or repaired, and not exceeding One Shilling *per* Square Yard of the Foot Way and Carriage Way paved, lighted, and watched, repaired, and gravelled, under the Direction of the said Commissioners, and situate, lying, and bring in any of the said Streets or other publick Passages and Places, and belonging to or lying before such Chapel, Meeting House, Warehouse, or other publick Building; and the said Commissioners shall also at their Discretion, yearly or oftener (if needful), assess all Burying Grounds, dead Walls (except such dead Walls as are situate in the Return of Streets; and all Garden Walls bounding or abutting on any Mews or Lanes), and void Spaces of Ground, towards the Purposes aforesaid, and which are not charged in respect of any Dwelling House or other Building by the Pound Rate, or otherwise, by virtue of the said recited Act, so that in the Whole such Rate or Assessment shall not in any One Year

exceed the Sum of Nine-pence for every Square yard of Pavement and Road paved, gravelled, or repaired, nor the Sum of One Shilling for every Square Yard of Foot Way and Carriage Way paved, lighted, and watched, repaired, and gravelled, under the Direction of the said Commissioners, situate as aforesaid, or belonging to or lying before such Burying Grounds, dead Walls, or void Spaces of Ground; and all Rates and Assessments to be made and paid for all such Burying Grounds, Chapels, Meeting Houses, Markets, Warehouses, or other publick Buildings, dead Walls, or void Spaces of Ground respectively, shall be paid by the respective Owner or Owners, Lessee or Lessees, Occupier or Occupiers thereof, and shall be charged and chargeable on the said Premises, and be recovered and applied in such Manner as other Rates and Assessments are directed to be recovered and applied by the said recited Act.

Occupiers of Houses to cleanse the Foot Ways Once a Day.

VII. And be it further enacted, That every Occupier of every House or Tenement within the said District, and in respect to Inmates, every House Owner shall, Once in every Day, between the Hours of Eight and Ten of the Clock in the Forenoon of each Day, scrape, sweep, and cleanse the Foot Way all along the Front of their respective Houses and Tenements, or cause the same to be scraped, swept, and cleansed, and in Default thereof shall, for every such Offence, forfeit and pay the Sum of Five Shillings, to be levied by Warrant under the Hand and Seal of any Justice of the Peace for the said County of *Middlesex*, upon the Oath of Two or more credible Witnesses; which Oath such Justice is hereby required and empowered to administer.

Penalty on Persons digging Earth, or leaving Holes in the Streets.

VIII. And be it further enacted, That if any Person or Persons whomsoever shall dig any Earth, or leave any Hole in and Street, or other publick Passage or Place, before any House or Tenement built or in building within the said District, for the Purpose of making Vaults, or any other Purposes whatsoever, and shall not inclose the same in a good and sufficient Manner, to be approved of by the Surveyor or Surveyors to the said Commissioners; or if any such Person or Persons shall keep up such Inclosure longer than the said Commissioners shall think absolutely necessary, or shall not well

and sufficiently fence or rail before the Area or Areas fronting to any Street, or publick Passage or Place, every Person or Persons guilty of any of the Offences aforesaid, shall forfeit and pay the Sum of Twenty Shillings, and the Sum of Forty shillings for every Week that such Nuisance shall be continued.

Penalty on beating Carpets, etc. in the Streets.

IX. And be it further enacted, That if any Person or Persons shall within any Street, or other publick Passage or Place already or hereafter to be set out or made within the said District, beat or dust any Carpet or Carpets, or drive any Carriage or Carriages for the Purpose of breaking Horses, or ride, lead, or drive any Horse for the Purpose of exercising or airing such Horse, (otherwise than by passing through such Street, or other publick Passage or Place), then and in every such Case it shall and may be lawful to and for any Justice of the Peace for the said County of *Middlesex*, upon Complaint to him made by One or more credible Witness or Witnesses, to issue a Warrant, requiring such Offender or Offenders to appear before him, at such Time and Place as shall be in such Warrant specified; and every such Offender or Offenders shall for every such Offence, being thereof duly convicted upon the Oath of any credible Witness or Witnesses, (which Oath such Justice is hereby authorized and required to administer), forfeit and pay any Sum not exceeding Forty Shillings nor less than Five Shillings; and in case the Person who shall beat or dust such Carpet or Carpets, or drive such Carriage or Carriages for the Purpose of breaking Horses, or ride, lead, or drive any Horse for the Purpose of exercising or airing such Horse, (otherwise than as aforesaid) cannot be apprehended, that then a like Penalty of Forty Shillings nor less than Five Shillings shall be forfeited by the Owner of such Carpet or Carpets, Carriage or Carriages, or Horse or Horses.

**Penalty on driving Carriages, or riding or leading Horses, etc.
on the Foot Pavements.**

X. And be it further enacted, That if any Person or persons shall run, drive, or draw, or cause to be run, driven, or drawn, on any of the Foot Pavements within any of the Streets, or other publick Passages and Places, within the said District, any Wheel or Wheels, Sledge, Wheelbarrow, Truck, or any

Carnage whatsoever, or shall wilfully ride, lead, or drive any Horse, Cow, Ass, or other Cattle, Coach, or other Carriage whatsoever, upon any Part of the said Foot Pavements, then and in any such Case, it shall and may be lawful to and for any Justice of the Peace for the said County of *Middlesex*, upon Complaint to him made by One or more credible Witness or Witnesses, to issue a Warrant, requiring such Offender or Offenders to appear before him at such Time and Place as shall be in such Warrant specified; and it shall and may be lawful to and for any Person or Persons who shall see such Offence committed to seize, and also for any other Person or Persons to assist in seizing the Offender or Offenders, and they are hereby required so to do by the Authority of this Act, and without any other Warrant to convey and deliver him, her, or them into the Custody of a Peace Officer, in order to be secured and conveyed before such Justice of the Peace; and the Party or Parties accused being so brought before such Justice, such Justice shall proceed to examine upon Oath any Witness or Witnesses who shall appear or be produced to give Information touching such Offence, (which Oath the said Justice is hereby authorized and required to administer); and if the Party or Parties accused shall be convicted of such Offence, either by his, her, or their own Confession, or upon Information as aforesaid, he, she, or they so convicted of any such Offences respectively, shall forfeit the Sum of Ten Shilling, over and above the Expences of repairing any Damage that may be occasional thereby, the Amount of which shall be ascertained by the said Justice, for the First Offence, the Sum of Twenty Shillings for the Second Offence, and the Sum of Forty Shillings for the Third and every other subsequent Offence; and in case such Offender or Offenders shall not upon such Conviction pay such Forfeitures by him, her, or them incurred as aforesaid, the Justice before whom such Offender or Offenders shall be convicted, is hereby required to commit him, her, or them to the House of Correction for the said County, there to be kept to hard Labour for any Space of Time not exceeding Thirty Days nor less than Five Days.

Penalty on obstructing Officers.

XI. And be it further enacted, That if any Person or Persons shall at any Time or Times obstruct, hinder, or molest any Surveyor or Surveyors, or other Officer or Officers, Person or Persons whomsoever, who are or shall

be employed by the said Commissioners in the Execution of the said recited Act or this Act, every Person or Persons so offending, shall for the First Offence, forfeit the Sum of Twenty Shillings, for the Second Offence the Sum of Forty Shillings, and for the Third and every other Offence the Sum of Three Pounds.

Commissioners to repair the Streets, &c.

XII. And be it further enacted, That it shall and may be lawful to and for the said Commissioners to cause to be dug, carted, and carried out of, or brought into the said several Streets and other publick Passages and Places already or hereafter to be set out or made, or any of them, or any Part or Parts thereof, such Gravel, Stones and other Materials as they shall judge necessary, and may likewise cause the Ground thereof to be raised or lowered, the Course of the Channels running in or through the same to be turned or altered, new Grates to the Common Sewers to be added or replaced, and in what Numbers or Places they shall think proper, and the Water Pipes which now be or hereafter shall be said under Ground to be taken up and new laid in such Places, Manner, and Form, as they shall judge best, the Charges and Expences of taking up, altering, and relaying such Pipes to be borne and paid by the said Commissioners, but the said Commissioners shall not remove or cause to be removed any Water Pipes, without giving Notice to and advising with the Inspector or Supervisor of the Water Company to which such Pipes belong; and that the said Commissioners may likewise cause such Number of Posts to be set up and erected in or upon any of the said Streets, and other publick Passages and Places, at such Distances and in such Manner as they shall think proper, and may cause all or any of the Posts and Rails already erected, set up, and affixed, or hereafter to be erected, set up, and affixed, to be painted or repaired, and new Posts and Rails to be set up, erected, and affixed, in the Place of such of them as shall be decayed or rendered useless.

Respecting Water Pipes.

XIII. And be it further enacted, That when and so often as any Main or Mains, Pipe or Pipes belonging to any Water Company, who now furnish, or shall hereafter furnish the Inhabitants of the said District with Water, and which now lie, or shall hereafter be laid under Ground in any of the said

Streets, or other publick Passages or Places, shall happen to break, burst, or decay, so as to require Reparation, the Surveyor or Surveyors of the said Commissioners for the Time being, or such other Person or Persons as the said Commissioners shall appoint for that Purpose, shall forthwith give, or cause to be given, Notice thereof, in Writing, to the Paviour or Supervisor of every such Water Company; and the Paviour or Supervisor of such Water Company, to whom the said Main or Mains, Pipe or Pipes shall belong is and are hereby required to take up the Pavement and open the Ground, and cause or procure the said Main or Mains, Pipe or Pipes to be repaired, and afterwards to fill the said Ground, ram down, and make good the same with Gravel, in all Cases where the same shall not have been paved, within Two Days next after such Notice to be given, and as soon as such Main or Pipe shall have been so repaired, and the Ground to filled up, rammed down, and gravelled, he or they shall give or cause to be given Notice thereof, in Writing, to the Surveyor or Surveyors for the Time being of the said Commissioners; and if the Paviour or Pavieurs, Supervisor or Supervisors, of any such Water Company, to or for whom such Notice shall be given or left at his or their last Place or Places of Abode, shall, by the Space of Two Days next after giving or leaving such Notice as aforesaid, refuse or neglect to take up such Pavement, and open such Ground, and cause or procure such Main or Mains, Pipe or Pipes to be amended and repaired, or afterwards to fill up the Ground so taken up, or to give such immediate Notice of his having so done to the Surveyor or Surveyors of the said Commissioners for the Time being, then and in every such Case, the Person or Persons so respectively refusing or neglecting shall, for every such Offence, forfeit and pay the Sum of Five Pounds; and if any Main or Mains, Pipe or Pipes, not belonging to any Water Company, shall happen to break, burst, or decay as aforesaid, in any of the said Streets, or other publick Passages and Places, then and in every such Case the respective Owner or Owners thereof shall forthwith cause the Ground over the same to be opened, and such Main or Mains, Pipe or Pipes to be repaired, and Notice thereof in Writing to be given to the Surveyor or Surveyors for the Time being of the said Commissioners; or in case of Refusal or Neglect so to do, shall, for every such Offence, forfeit and pay the Sum of Five Pounds; and if any Pavement shall be broken or taken up for the Purpose of making, repairing, or altering any Main, Pipe, Vault, or Drain, then and in every such Case, the Person or Persons so breaking or taking up the said Pavement, or

causing the same to be so broken or taken up, shall, as soon as the Nature of the Work will permit, cause the Ground to be filled in or rammed down, and Notice thereof in Writing to be given to the Surveyor or Surveyors for the Time being of the said Commissioners; or in case of Refusal or Neglect so to do, shall, for every such Offence, forfeit and pay the Sum of Forty Shillings; and if such Surveyor or Surveyors, to whom any such Notice as aforesaid shall be so given, shall, by the Space of Two Days next after the giving of such Notice to him or them as aforesaid, refuse or neglect to relay and repair, or cause to be relaid and repaired, the Pavement so broken up, then and in every such Case, he or they shall forfeit and pay the Sum of Twenty Shillings for every Day such Pavement shall be neglected to be relaid or repaired after the Expiration of the said Two Days: Provided always, that if it shall so happen that at any Time there shall be no regular or fixed Appointment of a Paviour or Surveyor of any such Water Company, then and in such Case such Notice shall be delivered to or left at the Office of the Clerk, or Secretary of such Company, and considered as sufficient Notice for the Purposes aforesaid.

**How to Expences of relaying the Pavement opened for
laying down or repairing Water Pipes shall be paid.**

XIV. Provided always, and be it further enacted and declared, That the Charges and Expences of relaying the Pavement or gravelling the Ground which shall be broken, taken up, or opened for the Purposes of laying down, repairing, or amending any such Main or Mains, Pipe or Pipes, shall be reimbursed and paid to the said Commissioners, or to such Person as they shall appoint to receive the same, by the Clerk or Treasurer for the Time being of any such Water Company to whom such Main or Mains, Pipe or Pipes shall belong, or if the same shall not belong to any such Water Company, then by the respective Owner or Owners thereof; and if such Clerk or Treasurer to any such Water Company, or the respective Owner or Owners of such Main or Mans, Pipe or Pipes, liable to reimburse and pay such Charges and Expences, shall refuse or neglect to pay the same within Ten Days next after Demand thereof in Writing, signed by the Clerk of the said Commissioners, and left at their respective Dwelling Houses or last Places of Abode, or at the Office of such Company, together with a Bill to be annexed to such Demand, containing an Account of such Charges and

Expences, then and in every such Case, the Money so expended shall and may be recovered by the said Commissioners of and from the Company, or Person or Persons so liable thereto, by Action or Actions of Debt, Bill, Plaint, or Information in any of His Majesty's Courts of Record at *Westminster*, to be commenced within Three Calendar Months next after such Demand respectively, in which Acton or Actions, Suit or Suits respectively, no Essoign, Protection, or Wager of Law, or more than One Imparlance, shall be allowed.

**For Payment of Principal Money and Interest
advanced on Credit to the Rates.**

XV. And be it further enacted, That in order to discharge the Principal Money and Interest already advanced and lent, or which may be hereafter advanced and lent upon the Credit of the Rates or Assessments made by virtue of the said recited Act, it shall and may be lawful to and for the said Commissioners, and they are hereby authorized and directed, yearly and every Year, to deduct, appropriate, and set apart, the Sum of One Penny in the Pound of the Total Amount of the yearly Rent or Value of the several Houses and other Buildings, Lands, and Grounds within the said District; and the said Sum or Sums of Money so to be set apart and appropriated, shall be from Time to Time taken and deducted from and out of the Rate and Assessment levied and collected for forming and keeping in Repair the Streets, and other publick Passages and Places within the said District, and for otherwise improving the same: Provided always, that such Sum or Sums of Money so to be deducted, set apart, and appropriated as aforesaid, shall not at any Time exceed the Proportion of One-twentieth Part of such Rates or Assessments as shall have been actually levied and collected, and shall only be to deducted, set apart, and appropriated at such Time or Times as the said Rate or Assessment shall not exceed the full Sum of Two Shillings in the Pound in any One Year.

Respecting Surplus of Rate.

XVI. And be it further enacted, That it shall and may be lawful to and for the said Commissioners, and they are hereby authorized and empowered, from Time to Time, when and as often as the Surplus of the said Rate (if any), shall, together with the Produce of One Penny in the Pound, so to be

set apart and appropriated, amount to the Sum of One hundred Pounds or upwards, to pay off and discharge the Money borrowed and to be borrowed on the Credit of the said Rate, in such Manner as the said Commissioners shall think proper, and a separate Account shall be kept of the Sums of Money paid off and discharged by the Surplus of the said Rate, distinct from those which shall be paid off and discharged by the Sum so appropriated as aforesaid by virtue of this Act.

Application of Compensation where amounting to 200l.

XVII. And be it further enacted, That if any Money shall be agreed or awarded to be paid for any Buildings, Lands, or Hereditaments purchased, taken, or used by virtue of the Powers of the said recited Act and this Act, for the Purposes thereof, which shall belong to any Corporation, Feme Covert, Infant, Lunatick, or Person or Persons under any other Disability or Incapacity, such Money shall, in case the same shall amount to or exceed the Sum of Two hundred Pounds, with all convenient Speed be paid into the Bank of *England*, in the Name and with the Privity of the Accountant General of the High Court of Chancery, to be placed to his Account there *ex parte* the Commissioners for executing the said Act and this Act, to the Intent that such Money shall be applied, under the Direction and with the Approbation of the said Court, to be signified by an Order made upon a Petition, to be preferred in a summary Way, by the Person or Persons who would have been entitled to the Rents and Profits of the said Buildings, Lands, and Hereditaments, in the Purchase or Redemption of the Land Tax, or towards the Discharge of any Debt or Debts, or such other Incumbrances, or Parts thereof, as the said Court shall authorize to be paid, affecting the same Lands or Hereditaments, or affecting other Buildings, Lands, or Hereditaments standing settled therewith, to the same or the like Uses, Intents, or Purposes; or where such Money shall not be so applied, then the same shall be laid out and invested, under the like Direction and Approbation of the said Court, in the Purchase of other Buildings, Lands, or Hereditaments, which shall be conveyed and settled to, for, and upon such and the like Uses, Trusts, Intents, and Purposes, and in the same Manner as the Buildings, Lands, or Hereditaments which shall be so purchased, taken, or used as aforesaid, stood settled or limited, or such of them as at the Time of making such Conveyance and Settlement shall be existing undetermined

and capable of taking Effect; and in the mean Time and until such Purchase shall be made, the said Money shall, by Order of the Court of Chancery, upon Application thereto, be invested by the said Accountant General, in his Name, in the Purchase of Three Pounds *per Centum* Consolidated or Three Pounds *per Centum* Reduced Bank Annuities; and in the mean Time and until the said Bank Annuities shall be ordered by the said Court to be sold, for the Purposes aforesaid, the Dividends and annual Produce of the said Consolidated or Reduced Bank Annuities shall from Time to Time be paid, by Order of the said Court, to the Person or Persons who would for the Time being have been entitled to the Rents and Profits of the Buildings, Lands, or Hereditaments so hereby directed to be purchased, in case such Purchase or Settlement were made.

**Application where the Money does not exceed 200*l.*
nor less than 20*l.***

XVIII. Provided always, and be it further enacted, That if any Money so agreed or awarded to be paid for any Buildings, Lands, or Hereditaments purchased, taken, or used for the Purposes aforesaid, and belonging to any Corporation, or any Person or Persons under Disability or Incapacity as aforesaid, shall be less than the Sum of Two hundred Pounds, and shall exceed the Sum of Twenty Pounds, then and in all such Cases, the same shall (at the Option of the Person or Persons for the Time being entitled to the Rents and Profits of the Buildings, Lands, or Hereditaments so purchased, taken, or used, or of his, her, or their Guardian or Guardians, Committee or Committees, in case of Infancy or Lunacy, to be signified by Writing under their respective Hands), be paid into the Bank, in the Name and with the Privity of the said Accountant General of the High Court of Chancery, and be placed to his Account as aforesaid, in order to be applied in Manner herein-before directed, or otherwise the same shall be paid (at the like Option) to Two Trustees, to be nominated by the Person or Persons making such Option, and approved of by Three or more of the said Commissioners (such Nomination and Approbation to be signified in Writing under the Hands of the nominating and approving Parties), in order that such Principal Money, and the Dividends arising thereon, may be applied in any Manner herein-before directed, so far as the Case be

applicable, without obtaining or being required to obtain the Direction or Approbation of the Court of Chancery.

Application where Money is less than 20*l*.

XIX. Provided also, and be it further enacted, That where such Money, so agreed or awarded to be paid as next before mentioned, shall be less than Twenty Pounds, then and in all such Cases, the same shall be applied to the Use of the Person or Persons who would, for the Time being, have been entitled to the Rents and Profits of the Buildings, Lands or Hereditaments so purchased, taken, or used for the Purposes of the said Act and this Act, in such Manner as the said Commissioners, or any Three or more of them, shall think fit; or in case of Infancy or Lunacy, then to his, her, or their Guardian or Guardians, Committee or Committees to and for the Use and Benefit of such Person or Persons so entitled respectively.

For paying the Expences of the Act.

XX. And be it further enacted, That it shall and may be lawful for the said Commissioners to pay and discharge the Expences attending the obtaining and passing this Act, by and out of such Monies as they may think fit to borrow by virtue of the Power and Authority given to them in and by the said recited Act, or by and out of any of the Rates or Assessments by the said recited Act granted.

Recovery of Penalties.

XXI. And be it further enacted, That all Penalties and Forfeitures by this Act imposed (the Manner of recovering whereof is not hereby otherwise directed), shall be levied and recovered in such Manner and Form in all Respects, as the Penalties and Forfeitures are directed to be levied and recovered by the said recited Act.

Powers of former Act extended to this Act.

XXII. And be it further enacted, That the Commissioners acting under or by virtue of the said recited Act, shall be Commissioners for carrying into Execution the several Powers and Authorities given by this Act, and that the

said Commissioners shall have as full and ample Powers of rating, assessing, and levying all such Sums of Money as they shall deem necessary for the Purposes of this Act, as are given to them in and by the said recited Act; and that all other the Provisions of the said recited Act (except such as are hereby varied or altered), shall be extended to this Act, in as full, large, and ample Manner, to all Intents and Purposes, as if the same were repeated and re-enacted in the Body of this present Act.

Publick Act.

XXIII. And be it further enacted, That this Act shall be deemed, adjudged, and taken to be a Publick Act, and shall be judicially taken Notice of as such by all Judges, Justices and other Persons whomsoever, without specially pleading the same.

FINIS.

*** END OF THE PROJECT GUTENBERG EBOOK ACTS OF 30° &
43° GEO. III. RELATING TO A DISTRICT IN THE PARISH OF SAINT
LUKE, CHELSEA, CALLED HANS TOWN ***

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